

District- Chattogram

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 2387 of 2020

Nizam Uddin and others

... petitioners

- versus-

Dr. Zaman Ahammad and others

... opposite parties

Mr. ASM Kamal Amroohi Chowdhury, Advocate

....for the petitioners

Mr. Manzur-al-Matin, Advocate with

Mr. Snehardi Chakravarty

... for the opposite parties

Heard on: 29.01.2024

Judgment on: 13.02.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite parties No. 1 and 2 to show cause as to why the order dated 01.11.2020 passed by the learned District Judge, Chattogram in Miscellaneous Case No. 205 of 2020 rejecting summarily the application under section 24 of the Code of Civil Procedure filed by the petitioners praying for transfer of H.R.C. Cases No. 7 of 2011, 10 of 2011, 12 of 2011, 21 of 2011, 9 of 2011, 8 of 2011, 22 of 2011, 11 of 2011, 15 of 2011, 24 of 2011, 16 of 2011, 17 of 2011, 18 of 2011, 14 of 2011, 37 of 2011, 13 of 2011 under section 19(1) of the Premises Rent Control Act, 1991 and

H.R.C Cases No. 14 of 2012, 12 of 2012, 13 of 2013, 5 of 2012, 7 of 2012, 8 of 2012, 15 of 2012, 10 of 2012, 11 of 2012, 9 of 2012 and 6 of 2012 under section 27 of the Premises Rent Control Act, 1991 now pending before the Court of House Rent Controller and Senior Assistant Judge, 3rd Court, Chattogram, should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

The short facts for the purpose of the disposal of the Rule are that the present petitioners as petitioners filed the above mentioned HRC cases before the House Rent Controller and Senior Assistant Judge, 3rd Court Chattogram contending inter alia that they were running their businesses on rental basis in different shops under ownership of the Waqf Estate namely Fakir Mohammad Waqf Estate, (Opposite party No. 2) under the mutawalliship of opposite party No. 1. The petitioners were regularly paying their rents but the present Mutawalli, opposite party No. 1, while refused to receive monthly rents from the petitioners then they filed the above mentioned HRC cases under sections 19 (1) and 27 of the Premises Rent Control Act, 1991. During hearing of the cases on 28.10.2020 the learned Assistant Judge, 3rd Court, Chattogram told that :

“প্রার্থীগণ জমিদার প্রতিপক্ষ ওয়াকফ এস্টেট এর বিরুদ্ধে মামলা করিয়া অহেতুক হয়রানি করিয়া আসিতেছে। ভাড়াটিয়া কর্তৃক কিসের মামলা। জমিদারের ঘর জমিদারকে বুঝাইয়া না দিয়া মামলা করিয়া রাখিতেছে। প্রতিপক্ষকে এ ধরনের হয়রানি হইতে রক্ষা করিতে হইবে।”

As such, the petitioners apprehended that they would not get fear justice from the above Judge for which they filed Miscellaneous Case No. 205 of 2020 under section 24 of the Code of Civil Procedure praying for transfer the house rent control cases from the present court to any other competent court in Chattogram having jurisdiction.

The learned District Judge, Chattogram by his order dated 01.11.2022 summarily rejected the said miscellaneous case against which the petitioners moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule.

I have heard the submissions placed by the learned Advocate Mr. ASM Kamal Amroohi Chowdhury who has appeared on behalf of the petitioners and Mr. Manzur-Al-Matin who has appeared on behalf of the opposite party and perused the record along with impugned judgment and order.

During hearing it has been admitted that the learned Presiding Judge who was working at the relevant time in the Court of Assistant Judge, 3rd Court and as House Rent Controller Chattogram has already been transferred from the Chattogram Judgeship. Since the miscellaneous case under section 24 of the Code of Civil Procedure was filed having apprehended that the petitioners would not get proper

justice from the then House Rent Controller and Assistant Judge, 3rd Court, Chattogram and by this time he has been transferred from Chattogram Judgeship, the present Rule has become infructuous and, as such, the same is liable to be discharged.

In the result, the Rule is discharged without any order as to cost.

The concerned House Rent Controller is directed to dispose of the above cases within the stipulated time by law.

Let a copy of this judgment be transmitted at once.